

Child, Women and Bonded Labour - The Foundation Track

Chapter F2.8 — From Zero: The Two Ages, Maternity Benefit, POSH, and Bonded Labour

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NOTE · HOW TO USE THIS DOCUMENT

The protective statutes - those that shield particular categories of worker rather than regulating employment generally. Four bodies of law: the Child and Adolescent Labour Act as recast in 2016, which turns on the TWO AGES of fourteen and eighteen; the Maternity Benefit Act as amended in 2017, which raised maternity leave to twenty-six weeks and is directly your subject because it sits inside the Social Security Code; the POSH Act 2013 on sexual harassment at the workplace, with its committee composition and time limits; and the Bonded Labour System (Abolition) Act 1976, which is Article 23 written as a statute. Every one of these connects to a constitutional provision you already know from Chapters F1.3 and F1.4, so this chapter should feel like the completion of an argument rather than a new subject. Study time 5 hours across four sessions.

This is the FOUNDATION layer. Maternity Benefit is treated in outline here and again in full in Module 3, because it forms part of the Code on Social Security. Monetary figures are those in force as at August 2026 and are revised by notification.

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0. The Constitutional Spine of This Chapter

Do not learn these four statutes as four separate things. Each is a constitutional provision given statutory teeth, and you already know all four provisions.

MUST MASTER · FOUR STATUTES, FOUR CONSTITUTIONAL PARENTS

Statute	Constitutional parent	What the Constitution said
Child and Adolescent Labour Act, 1986 as amended 2016	Article 24 (Fundamental Right) and Article 39(e) and (f) (Directive)	Art 24 prohibits employment of a child below 14 in a factory, mine or hazardous employment. Art 39(e) and (f) direct the State to protect childhood against exploitation
Maternity Benefit Act, 1961	Article 42 (Directive)	Just and humane conditions of work, and maternity relief
POSH Act, 2013	Articles 14, 15, 19(1)(g) and 21	Equality, non-discrimination on grounds of sex, the right to practise any profession, and the right to life with dignity
Bonded Labour System (Abolition) Act, 1976	Article 23 (Fundamental Right)	Prohibits traffic in human beings, begar and other similar forms of forced labour

So the whole chapter is Chapter F1.4's DPSP-to-statute map, worked out in detail for the protective statutes. If you can name the parent provision for each Act, you have understood the chapter's structure before learning a single number.

STUDY SESSION · CHAPTER F2.8 - THE FOUR SESSIONS

- Session 1 - Child and adolescent labour** and the two ages (Section 1)
- Session 2 - Maternity Benefit** - the twenty-six weeks and everything around it (Section 2)
- Session 3 - POSH** - Vishaka, the committees, the time limits (Section 3)
- Session 4 - Bonded labour** - Article 23 in statutory form (Section 4)

Then **40 graded questions**. Budget **five sessions**, about **two and a half days**.

1. Session 1 - Child and Adolescent Labour ★★★★★

1.1 The two ages - the structure of the whole Act

MUST MASTER · FOURTEEN AND EIGHTEEN - AND THE 2016 AMENDMENT THAT CREATED THE TWO-TIER SCHEME

The **Child Labour (Prohibition and Regulation) Act, 1986** was substantially recast by the **amendment of 2016**, which renamed it the **Child and Adolescent Labour (Prohibition and Regulation) Act** and built it around **two ages**.

Category	Age	Rule
Child	Below 14	COMPLETE PROHIBITION - a child may not be employed in any occupation or process whatsoever , subject to two narrow exceptions
Adolescent	14 to 18	PARTIAL PROHIBITION - an adolescent may not be employed in a hazardous occupation or process listed in the Schedule, but may work elsewhere

Understand what the 2016 amendment changed, because this is the examinable point.

Before 2016 the Act **prohibited** child labour only in a **list of specified** occupations and processes, and **regulated** it elsewhere. So a child could lawfully work in a non-listed occupation under regulated conditions.

After 2016 the position is reversed: **prohibition became total for children below 14**, and the concept of "adolescent" was introduced to cover the 14-to-18 band with a narrower hazardous-work prohibition.

Note also how this aligns the Act with two other provisions you know: the **Article 21A** right to education for ages **six to fourteen** and the **RTE Act 2009**. A child below fourteen must be in school, so a child below fourteen cannot be at work. The prohibition and the education right are the same policy from two directions - which is why the 2016 amendment matched the Act's age to Article 21A's.

1.2 The two exceptions for children

The complete prohibition carries two narrow exceptions, and both are examined because candidates either forget them or overstate them:

- 1 Helping the family or a family enterprise** - a child may help his family in work which is **not** a hazardous occupation or process, **after school hours** or **during vacations**. "Family enterprise" means any work performed by members of the family with the engagement of other persons
- 2 Working as an artist** in an **audio-visual entertainment industry**, including advertisement, films, television serials or any such other entertainment or sports activity - **except a circus** - subject to prescribed conditions of **safety** and provided **schooling is not affected**

BEGINNER MISTAKE · THREE LIMITS ON THE EXCEPTIONS

- 1 **A circus is expressly excluded** from the artist exception. Circus work is the one entertainment activity where a child may not perform. If a question offers circus, it is wrong
- 2 Helping the family is permitted only **after school hours or during vacations** - never in substitution for schooling
- 3 Neither exception permits **hazardous** work. The hazardous prohibition applies absolutely to children

Why the family exception was controversial, and it is worth being able to say this neutrally: critics argued that a very large share of Indian child labour occurs precisely **within family enterprises** - home-based bidi rolling, carpet weaving, agricultural work - so an exception for family work risks legitimising much of the problem. The Government's position was that the exception preserves genuine family life and traditional skill transmission while the schooling condition protects education. **State both views and stop.**

1.3 The hazardous Schedule, conditions and penalties

- 1 After 2016 the **Schedule of hazardous occupations and processes** for adolescents was reduced to **three** broad heads: **mines, inflammable substances or explosives**, and **hazardous processes** as defined under the **Factories Act, 1948** - with power in the Central Government to add to the list
- 2 **Working conditions for a permitted adolescent** - not more than **six hours** a day including a rest interval, no work between **7 p.m. and 8 a.m.**, **no overtime**, one weekly holiday, and no employment in more than one establishment on the same day

MUST MASTER · PENALTIES AND THE REHABILITATION FUND - THE NUMBERS

- 1 **Employing a child**, or permitting a child to work in contravention: imprisonment of **six months to two years**, or a fine of **Rs 20,000 to Rs 50,000**, or both
- 2 **Repeat offence**: imprisonment of **one to three years**
- 3 **Parents or guardians** are **not liable to punishment for a first offence**, and for a repeat offence are liable only to a fine up to **Rs 10,000**. The logic is that a parent who sends a child to work is usually acting out of poverty, so the Act aims its punishment at the **employer**
- 4 A **Child and Adolescent Labour Rehabilitation Fund** is established for each rescued child, into which the **appropriate Government deposits Rs 15,000** per child, in addition to any **fine** realised from the employer. The amount, with accrued interest, is paid to the child on attaining eighteen
- 5 The **District Magistrate** is empowered to enforce the Act, which was a 2016 change designed to strengthen local enforcement
- 6 Offences are **cognizable**

CHECK YOURSELF · SESSION 1

- 1 Give the two ages and the rule for each. What did the 2016 amendment reverse?
- 2 Which two constitutional provisions parent this Act, and how does the age of 14 connect to Article 21A?
- 3 State the two exceptions to the child prohibition, with their conditions
- 4 Which entertainment activity is expressly excluded from the artist exception?
- 5 Name the three heads of the hazardous Schedule for adolescents
- 6 Give the working conditions for a permitted adolescent
- 7 Give the penalty for employing a child, the position of parents, and the Rehabilitation Fund amount

2. Session 2 - The Maternity Benefit Act, 1961



This Act is your subject as well as a labour law - it sits inside the Code on Social Security, and Module 3 returns to it. Learn the numbers here.

2.1 Applicability and eligibility

- 1 The Act applies to every **establishment** being a **factory, mine or plantation**, and to every shop or establishment in which **ten or more** persons are employed, or were employed on any day of the preceding twelve months
- 2 **Eligibility** - a woman is entitled to maternity benefit if she has **actually worked** for not less than **eighty days** in the **twelve months immediately preceding** her expected date of delivery

BEGINNER MISTAKE · EIGHTY DAYS, NOT TWO HUNDRED AND FORTY

The maternity eligibility figure is **80 days**, and candidates confuse it with the **240 days** of continuous service used for retrenchment compensation in Chapter F2.3 and for annual leave in Chapter F2.6.

Keep the three apart:

- 1 **80 days** in 12 months - **maternity benefit** eligibility
- 2 **240 days** in 12 months - **continuous service** for retrenchment, and leave with wages under the Factories Act (**180** under the OSH Code)
- 3 **90 days** in 12 months - **building worker** beneficiary registration from Chapter F2.7

Three different statutes, three different figures. **80, 240, 90.**

2.2 The periods of leave - the table to memorise

MUST MASTER · MATERNITY LEAVE - EVERY PERIOD, AND THE 2017 AMENDMENT

Situation	Period	Detail
Delivery - first two children	26 weeks	Of which not more than 8 weeks may be taken before the expected date of delivery. Raised from 12 weeks by the 2017 amendment
Delivery - third child onward	12 weeks	Of which not more than 6 weeks before the expected date. The higher entitlement is confined to a woman with fewer than two surviving children
Commissioning mother or adopting mother	12 weeks	Where a woman legally adopts a child below three months of age, or is a commissioning mother, twelve weeks from the date the child is handed over
Miscarriage or medical termination	6 weeks	Immediately following the day of the miscarriage or termination
Tubectomy operation	2 weeks	Immediately following the day of the operation
Illness arising out of pregnancy	1 month	Additional leave for illness arising out of pregnancy, delivery, premature birth, miscarriage, medical termination or tubectomy

The sequence to remember: 26, 12, 12, 6, 2, 1. Twenty-six weeks for the first two children; twelve for the third and for adoption or commissioning; six for miscarriage; two for tubectomy; one month for related illness.

The 2017 amendment made four changes, and they are asked as a set:

- 1 Maternity leave raised from **12 to 26 weeks**
- 2 **12 weeks** for a **commissioning or adopting** mother - a new category recognising surrogacy and adoption
- 3 A **creche** made compulsory in establishments with **50 or more employees**, with **four visits a day** permitted to the mother
- 4 **Work from home** may be allowed after the maternity benefit period, on terms mutually agreed, where the nature of the work permits

2.3 The protections

- 1 **Medical bonus of Rs 3,500** where no pre-natal confinement and post-natal care is provided free of charge by the employer
- 2 **Nursing breaks** - two breaks of the prescribed duration, in addition to the rest interval, until the child is **fifteen months** old
- 3 **No employment during six weeks immediately following** the day of delivery or miscarriage - the employer may not knowingly employ her, and she may not work
- 4 **Prohibition of arduous work** - no arduous work, long hours of standing, or work likely to interfere with pregnancy or normal development of the foetus, during the **one month preceding** the six-week period before delivery
- 5 **Dismissal during absence is void**. It is unlawful to discharge or dismiss a woman during or on account of her maternity absence, or to give her notice of discharge expiring during such absence, or to vary her conditions of service to her disadvantage
- 6 **Forfeiture of benefit** only where she is dismissed for **gross misconduct**, and even then the deprivation must be by written order stating reasons
- 7 **Payment** - maternity benefit for the period preceding delivery is paid **in advance** on production of proof; the balance within **forty-eight hours** of production of proof of delivery

WHY THIS EXISTS · WHY THE DISMISSAL PROTECTION IS ABSOLUTE, AND THE LINK TO YOUR OWN WORK

A protection that could be defeated by dismissing the woman would be worthless. So the Act makes dismissal during maternity absence **void**, and makes notice expiring during the absence void too - closing the obvious workaround.

The link to your own subject: maternity benefit sits within the **Code on Social Security, 2020**, one of the nine Acts it subsumes. And note the interaction with **ESI**: a woman covered by the **ESI Act** receives maternity benefit under **that Act** at **100 per cent of average daily wages for 26 weeks**, and is therefore outside the Maternity Benefit Act to that extent. **The two schemes do not stack** - which is exactly the ESI-and-Employees'-Compensation mutual exclusivity pattern you will meet in Module 3.

CHECK YOURSELF · SESSION 2

- 1 Give the applicability threshold and the eligibility requirement. Distinguish 80, 240 and 90 days
- 2 Recite the six leave periods in sequence
- 3 How much leave for a third child, and why the difference?
- 4 Name the four changes made by the 2017 amendment
- 5 Give the medical bonus, the nursing break entitlement, and the two prohibitions on employment
- 6 Is dismissal during maternity absence valid? What is the single exception?
- 7 What happens where a woman is covered by ESI?

3. Session 3 - Sexual Harassment at the Workplace



The one statute in this chapter that began as a judgment rather than a Bill.

3.1 From Vishaka to the Act

- 1 In **Vishaka v State of Rajasthan (1997)** the Supreme Court, faced with the absence of any legislation, laid down **binding guidelines** on sexual harassment at the workplace, drawing on **Articles 14, 15, 19(1)(g) and 21** and on India's obligations under the **Convention on the Elimination of All Forms of Discrimination against Women (CEDAW)**
- 2 Those guidelines operated as law for **sixteen years** until Parliament enacted the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** - the **POSH Act**

IN PLAIN ENGLISH · WHY THIS HISTORY IS WORTH A SENTENCE AT INTERVIEW

Vishaka is the clearest example of a **judicial filling of a legislative vacuum**, and it connects directly to what you learned in Chapter F1.3: the Court derived the guidelines from **Article 21** (dignity), **Article 14 and 15** (equality and non-discrimination) and **Article 19(1)(g)** (the right to practise a profession, which is defeated if the workplace is unsafe).

So the argument runs: **a woman cannot exercise her Article 19(1)(g) right to work if the workplace is hostile**, therefore protection from harassment is an incident of the fundamental rights themselves. That is the reasoning, and it is a good illustration of how Part III expands into new territory without amendment.

3.2 What counts as sexual harassment, and where

Sexual harassment includes any one or more of the following **unwelcome** acts or behaviour, whether directly or by implication: **physical contact and advances**, a **demand or request for sexual favours**, making **sexually coloured remarks**, showing **pornography**, or any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

The Act also identifies circumstances which, if they occur in relation to any such act, amount to sexual harassment: **implied or explicit promise of preferential treatment**, **implied or explicit threat of detrimental treatment**, **implied or explicit threat about her present or future employment status**, **interference with her work or creating an intimidating, offensive or hostile work environment**, or **humiliating treatment likely to affect her health or safety**.

"Workplace" is defined widely - it includes any department or organisation established or controlled by the Government, any private sector organisation, hospitals, sports institutes, any place visited by the employee **arising out of or during the course of employment**, including transportation provided by the employer, and a **dwelling place or house** in the case of domestic workers.

3.3 The committees and the time limits

MUST MASTER · INTERNAL COMMITTEE AND LOCAL COMMITTEE - COMPOSITION AND THRESHOLDS

	Internal Committee (IC)	Local Committee (LC)
When required	Every employer of a workplace with ten or more employees	Constituted by the District Officer for establishments with fewer than ten employees, and where the complaint is against the employer himself
Constituted by	The employer	The District Officer
Presiding officer	A woman employed at a senior level at the workplace	A woman nominated by the District Officer
Members	Not less than four members; not less than one-half must be women ; at least two members from among employees committed to the cause of women or with legal knowledge; one member from a non-governmental organisation or association committed to the cause of women	Includes a nominated Chairperson, a member from among women working in the block or district, two members from NGOs, and the officer dealing with social welfare or women and child development as an ex officio member
Tenure	Not exceeding three years	Not exceeding three years

The composition figures to hold: ten or more employees triggers an IC; at least four members; at least half women; a woman senior employee presides; one external NGO member.

And note why the external member matters: a committee composed entirely of the employer's own staff would struggle to act against senior management. The mandatory outside member is a structural safeguard against capture - the same reasoning as the independent chairman of a Board of Conciliation in Chapter F2.3.

MUST MASTER · THE TIME LIMITS - A SEQUENCE OF FOUR

- 1 Complaint** - within **three months** of the incident, or of the last incident in a series. The Committee may extend by a further **three months** for recorded reasons
- 2 Inquiry** - to be completed within **ninety days**
- 3 Report** - the Committee must provide its report to the employer or District Officer within **ten days** of completion of the inquiry
- 4 Action** - the employer or District Officer must act on the recommendations within **sixty days**

Learn it as 3 months to complain (extendable by 3), 90 days to inquire, 10 days to report, 60 days to act.

Conciliation - before initiating an inquiry, the Committee may, at the **request of the aggrieved woman**, take steps to settle the matter by conciliation. But **no monetary settlement may be made the basis of conciliation**, and where a settlement is arrived at, **no further inquiry** is conducted.

Penalty on the employer for failing to constitute a Committee or comply with the Act: fine up to **Rs 50,000**; for a repeat offence, **twice** the punishment and possible **cancellation of the licence or registration** required to carry on business.

Interim relief the Committee may recommend during the pendency of an inquiry includes **transfer** of the aggrieved woman or the respondent, **leave** of up to **three months** in addition to her entitlement, and restraining the respondent from reporting on her work performance.

Malicious complaint - where the Committee concludes the allegation was **malicious**, or the complainant knowingly made a false complaint, it may recommend action. But the Act expressly provides that a **mere inability to substantiate a complaint** shall **not** attract action - an important safeguard, because otherwise no woman would risk complaining.

Confidentiality - the identity of the woman, the respondent and the witnesses, and the contents of the proceedings, may **not** be published or made known to the public. Breach attracts a penalty.

NOTE · POSH AND STANDING ORDERS - THE CONNECTION TO CHAPTER F2.4

Recall from Chapter F2.4 that **sexual harassment is enumerated as misconduct** in the Model Standing Orders. So the same conduct engages **two** processes: the **POSH inquiry** under the 2013 Act, and **disciplinary action** for misconduct under the standing orders.

They are not alternatives that exclude each other, and they are not double jeopardy either - recall from Chapter F1.3 that **Article 20(2)** bars a second **prosecution and punishment** before a court, not a departmental proceeding. The POSH Committee's inquiry may be treated as the inquiry for disciplinary purposes, and its recommendation acted upon.

The Codes also carry this forward - you met it in Chapter F2.6: where women work at night, the employer must ensure **POSH compliance** as one of the conditions.

CHECK YOURSELF · SESSION 3

- 1 Which case laid down the pre-statutory guidelines, in what year, and on which Articles and international convention did it rely?
- 2 Name five acts amounting to sexual harassment and three of the aggravating circumstances
- 3 Give the IC threshold, minimum membership, the women proportion, who presides, and why an external member is required
- 4 When is a Local Committee constituted, and by whom?
- 5 Give the four time limits
- 6 May a monetary settlement form the basis of conciliation?
- 7 What is the position where a complaint cannot be substantiated? Why does that safeguard exist?

4. Session 4 - Bonded Labour ★★★★★

The shortest session in the chapter, and the most direct constitutional statement in the whole module.

4.1 What the Act does

The **Bonded Labour System (Abolition) Act, 1976** gives effect to **Article 23**. Its operative provisions are unusually blunt, which makes them easy to learn:

- 1 The **bonded labour system is abolished** and every **bonded labourer stands freed and discharged** from any obligation to render bonded labour
- 2 Any **custom, agreement or other instrument** by virtue of which a person is required to render bonded labour is **void**
- 3 Every obligation of a bonded labourer to **repay any bonded debt** is **deemed to have been extinguished**
- 4 **No suit or other proceeding** shall lie in any civil court for the recovery of a bonded debt
- 5 Any **property of a bonded labourer** which was removed from his possession, or attached or mortgaged as security for a bonded debt, must be **restored** to him **free from all encumbrances**
- 6 A **freed bonded labourer may not be evicted** from any homestead or other residential premises which he was occupying as part of the consideration for bonded labour

JARGON DECODER · BONDED LABOUR SYSTEM - THE DEFINITION, AND THE ESSENTIAL ELEMENT

The **bonded labour system** means a system of forced or partly forced labour under which a debtor enters into an agreement with a creditor to render labour or service, or to forfeit the freedom of employment or movement, in consideration of an **advance** received, or in pursuance of a **customary or social obligation**, or by reason of his **birth in a particular caste or community**.

The essential element is the DEBT or the customary obligation used to compel labour.

Bonded labour is not merely underpaid labour; it is labour extracted through a **debt bondage** that the worker cannot discharge - typically because the notional wage credited is less than the interest accruing, so the debt grows however long he works.

And notice the reach of the definition: it covers bondage arising not only from an advance but also from a **customary or social obligation** or from **birth in a particular caste or community** - which is how the Act addresses hereditary and caste-based bondage rather than merely commercial debt.

4.2 Enforcement

- 1 **Vigilance Committees** are constituted at the **district** and **sub-divisional** level, chaired by the District Magistrate or Sub-Divisional Magistrate, with representation for **Scheduled Castes and Scheduled Tribes**, social workers, rural development officials and financial institutions
- 2 Their functions include advising on implementation, providing for the **economic and social rehabilitation** of freed bonded labourers, monitoring the working of credit institutions to ensure the freed labourer receives adequate credit, and **defending suits** brought against a freed labourer for the recovery of a bonded debt
- 3 **Penalty** - whoever compels a person to render bonded labour, or advances a bonded debt, is punishable with imprisonment up to **three years** and a fine up to **Rs 2,000**
- 4 Offences are **cognizable and bailable**, triable by an **Executive Magistrate** on whom judicial powers have been conferred for this purpose

WHY THIS EXISTS · WHY ABOLITION ALONE IS NOT ENOUGH - AND THE HONEST ASSESSMENT

A statute can extinguish a debt by a stroke of the pen. It cannot, by the same stroke, give the freed labourer an alternative livelihood.

That is why the Act pairs **abolition** with **rehabilitation** through the Vigilance Committees, and why the **Centrally Sponsored Scheme for Rehabilitation of Bonded Labourers** provides cash assistance to those released. Without rehabilitation, a freed labourer with no land, no skill and no credit frequently re-enters bondage - which is the honest assessment of the Act's record, and the right thing to say if asked.

Connect it back to Chapter F1.3. You already know that in the **Asiad Workers case (1982)** the Supreme Court held that **paying below the minimum wage amounts to forced labour under Article 23**. So Article 23 operates at two levels: the **Bonded Labour Act** addresses the extreme case of debt bondage, and the **minimum wage jurisprudence** addresses the ordinary case of economically compelled labour. **Same Article, two registers of severity** - and that framing is a genuinely strong answer.

CHECK YOURSELF · SESSION 4

- 1 Which Article does this Act implement? Name six of its operative provisions
- 2 Define the bonded labour system. What is the essential element, and what three sources of obligation does the definition cover?
- 3 Can a bonded debt be recovered in a civil court?
- 4 At what levels are Vigilance Committees constituted, and name four of their functions
- 5 Give the penalty
- 6 Why is abolition alone insufficient? Link Article 23 to the Asiad Workers holding

5. Graded Practice - 40 Questions ★★★★★

5.1 Level 1 - Recognition

Q. 1. Under the Child and Adolescent Labour Act as amended in 2016, a "child" is a person below

(a) 12 years (b) 14 years (c) 15 years (d) 18 years

Q. 2. An "adolescent" under the Act is a person who has completed

(a) 12 but not 15 years (b) 14 but not 18 years (c) 15 but not 18 years (d) 16 but not 21 years

Q. 3. Which Article of the Constitution prohibits employment of children below fourteen in a factory or mine?

(a) Article 21A (b) Article 23 (c) Article 24 (d) Article 39

Q. 4. Which entertainment activity is expressly excluded from the exception permitting a child to work as an artist?

(a) Television serials (b) Advertisements (c) Films (d) Circus

Q. 5. The amount deposited by the appropriate Government into the Child and Adolescent Labour Rehabilitation Fund for each rescued child is

(a) Rs 5,000 (b) Rs 10,000 (c) Rs 15,000 (d) Rs 25,000

Q. 6. The Maternity Benefit Act applies to shops and establishments employing

(a) 10 or more persons (b) 20 or more persons (c) 50 or more persons (d) 100 or more persons

Q. 7. To be eligible for maternity benefit a woman must have worked in the preceding twelve months for not less than

(a) 60 days (b) 80 days (c) 90 days (d) 240 days

Q. 8. Maternity leave for the first two children is

(a) 12 weeks (b) 16 weeks (c) 24 weeks (d) 26 weeks

Q. 9. Maternity leave for a commissioning or adopting mother is

(a) 6 weeks (b) 12 weeks (c) 18 weeks (d) 26 weeks

Q. 10. Leave following a miscarriage is

(a) 2 weeks (b) 4 weeks (c) 6 weeks (d) 12 weeks

Q. 11. Leave following a tubectomy operation is

(a) 1 week (b) 2 weeks (c) 4 weeks (d) 6 weeks

Q. 12. The medical bonus under the Maternity Benefit Act is

(a) Rs 1,000 (b) Rs 2,500 (c) Rs 3,500 (d) Rs 5,000

Q. 13. Nursing breaks are available until the child attains the age of

(a) 6 months (b) 12 months (c) 15 months (d) 18 months

Q. 14. The guidelines on sexual harassment preceding the POSH Act were laid down in

(a) *Maneka Gandhi v Union of India* (b) *Vishaka v State of Rajasthan* (c) *Indra Sawhney v Union of India* (d) *Reptakos Brett v Workmen*

Q. 15. An Internal Committee under the POSH Act is required where the number of employees is

(a) 5 or more (b) 10 or more (c) 20 or more (d) 50 or more

Q. 16. A complaint of sexual harassment must ordinarily be made within

(a) one month (b) three months (c) six months (d) one year

Q. 17. The inquiry by a Committee under the POSH Act must be completed within

(a) 30 days (b) 60 days (c) 90 days (d) 180 days

Q. 18. The Bonded Labour System (Abolition) Act was enacted in

(a) 1970 (b) 1976 (c) 1979 (d) 1986

Q. 19. Which Article does the Bonded Labour System (Abolition) Act implement?

(a) Article 21 (b) Article 23 (c) Article 24 (d) Article 43

5.2 Level 2 - Understanding

Q. 20. The most significant change made by the 2016 amendment to the child labour law was that

(a) the age of a child was raised to 16 (b) prohibition became complete for children below 14, replacing a scheme of prohibition in listed occupations and regulation elsewhere (c) all penalties were abolished (d) family enterprises were brought within the prohibition

Q. 21. A child of twelve helps in his family's non-hazardous enterprise after school hours. This is

(a) an offence in all circumstances (b) permitted, being within the family enterprise exception, provided schooling is not affected (c) permitted only with the District Magistrate's approval (d) permitted only during vacations

Q. 22. After 2016 the Schedule of hazardous occupations for adolescents comprises

(a) 83 processes (b) three broad heads - mines, inflammable substances or explosives, and hazardous processes under the Factories Act (c) all manufacturing processes (d) agriculture and construction

Q. 23. A parent who permits his child to work commits an offence for which, on a first occasion, he is

(a) liable to imprisonment (b) not liable to punishment (c) liable to a fine of Rs 50,000 (d) liable to the same penalty as an employer

Q. 24. A permitted adolescent may not work

(a) for more than 4 hours a day (b) between 7 p.m. and 8 a.m., nor for more than six hours a day, nor overtime (c) on more than three days a week (d) in any establishment employing adults

Q. 25. Maternity leave for a third child is

(a) 26 weeks (b) 12 weeks, of which not more than 6 before the expected date (c) 6 weeks (d) nil

Q. 26. A creche became compulsory under the Maternity Benefit Act, as amended in 2017, in establishments with

(a) 30 women workers (b) 50 or more employees (c) 100 or more employees (d) 250 or more employees

Q. 27. Dismissal of a woman during her maternity absence is

(a) valid if notice is given (b) void, save where she is dismissed for gross misconduct by written order stating reasons (c) valid with the Inspector's approval (d) valid if she has fewer than two surviving children

Q. 28. A woman covered by the Employees' State Insurance Act receives maternity benefit

(a) under both the ESI Act and the Maternity Benefit Act, cumulatively (b) under the ESI Act, and is to that extent outside the Maternity Benefit Act (c) under the Maternity Benefit Act only (d) at half rate under each

Q. 29. On which fundamental rights did *Vishaka* principally rely?

(a) Articles 25 to 28 (b) Articles 14, 15, 19(1)(g) and 21 (c) Articles 29 and 30 (d) Articles 32 and 226

Q. 30. The Internal Committee must have not less than

(a) two members, of whom one is a woman (b) four members, of whom not less than one-half are women, including one member from a non-governmental organisation (c) six members, all women (d) three members nominated by the District Officer

Q. 31. A Local Committee is constituted where

(a) the establishment employs more than 100 persons (b) the establishment has fewer than ten employees, or the complaint is against the employer himself (c) the Internal Committee declines jurisdiction (d) the complaint concerns a domestic worker only

Q. 32. Under the POSH Act, conciliation

(a) may be initiated by the Committee of its own motion (b) may be undertaken at the request of the aggrieved woman, but no monetary settlement may be made its basis (c) is mandatory before inquiry (d) is prohibited

Q. 33. Where a woman is unable to substantiate her complaint, the Act provides that

(a) she is liable to the penalty for a malicious complaint (b) mere inability to substantiate shall not attract action against her (c) she must pay the respondent's costs (d) the Committee must recommend her transfer

Q. 34. The essential element of the bonded labour system is

(a) low wages (b) long hours (c) a debt or customary obligation used to compel labour (d) absence of a written contract

Q. 35. Under the Bonded Labour System (Abolition) Act, a bonded debt

(a) remains recoverable in a civil court (b) is deemed extinguished, and no suit lies for its recovery (c) is recoverable only with the Vigilance Committee's consent (d) is converted into a bank loan

5.3 Level 3 - Recruitment Test standard**Q. 36. Match List-I with List-II and select the correct answer using the code below:**

List-I (Statute)	List-II (Constitutional parent)
A. Bonded Labour System (Abolition) Act, 1976	1. Article 42
B. Maternity Benefit Act, 1961	2. Article 24
C. Child and Adolescent Labour Act, 1986	3. Article 23
D. POSH Act, 2013	4. Articles 14, 15, 19(1)(g) and 21

(a) A-3 B-1 C-2 D-4 (b) A-2 B-1 C-3 D-4 (c) A-3 B-2 C-1 D-4 (d) A-1 B-3 C-2 D-4

Q. 37. Consider the following statements:

- 1 Maternity benefit eligibility requires 80 days of actual work in the preceding twelve months.
- 2 Continuous service for retrenchment compensation requires 240 days.
- 3 Registration as a building worker beneficiary requires 90 days in the preceding twelve months.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. Which one of the following statements about the POSH time limits is not correct?

(a) A complaint must ordinarily be made within three months, extendable by a further three months
(b) The inquiry must be completed within ninety days (c) The report must be given within thirty days of completion of the inquiry (d) The employer must act on the recommendations within sixty days

Q. 39. Consider the following statements about the 2017 amendment to the Maternity Benefit Act:

- 1 It raised maternity leave from twelve to twenty-six weeks.
- 2 It introduced twelve weeks' leave for a commissioning or adopting mother.
- 3 It made a creche compulsory at fifty or more employees, with four visits a day permitted.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 40. Article 23 has been applied at two levels of severity. Which pairing correctly states them?

(a) The Bonded Labour Act addresses debt bondage; the minimum wage jurisprudence in the Asiad Workers case addresses economically compelled labour (b) The Bonded Labour Act addresses child labour; Article 24 addresses adult labour (c) The Maternity Benefit Act addresses women; the Bonded Labour Act addresses men (d) Article 23 applies only to trafficking, and the Bonded Labour Act rests on Article 21

6. Answers and Explanations

6.1 Level 1

Q	Ans	Explanation
1	b	Below 14 - aligned with Article 21A and the RTE Act
2	b	14 but not 18 - the category created by the 2016 amendment
3	c	Article 24 - asked in this form in 2023. Article 39 is a Directive, not a prohibition
4	d	Circus is expressly excluded
5	c	Rs 15,000 per rescued child, plus any fine realised, paid to the child at eighteen
6	a	10 or more persons
7	b	80 days - not 240, which is the continuous-service figure
8	d	26 weeks , raised from 12 by the 2017 amendment
9	b	12 weeks
10	c	6 weeks
11	b	2 weeks
12	c	Rs 3,500
13	c	15 months
14	b	Vishaka v State of Rajasthan (1997)
15	b	10 or more employees
16	b	Three months , extendable by a further three for recorded reasons
17	c	90 days
18	b	1976
19	b	Article 23 - traffic in human beings, begar and forced labour

6.2 Level 2

Q	Ans	Explanation
20	b	Before 2016 the Act prohibited child labour only in listed occupations and regulated it elsewhere. After 2016 prohibition became complete below 14, with the adolescent category covering 14 to 18
21	b	Permitted under the family enterprise exception - non-hazardous work, after school hours or during vacations , schooling unaffected
22	b	Reduced to three broad heads , with power in the Central Government to add
23	b	Not liable for a first offence ; for a repeat offence, a fine up to Rs 10,000 . The Act aims its punishment at the employer , recognising that parents usually act out of poverty
24	b	Six hours including rest, no work 7 p.m. to 8 a.m. , no overtime , one weekly holiday
25	b	12 weeks , not more than 6 before the expected date. The 26-week entitlement is confined to a woman with fewer than two surviving children
26	b	50 or more employees , with four visits a day . Note the same figure appears in the Codes - see Chapter F2.6

Q	Ans	Explanation
27	b	Void , save for dismissal for gross misconduct by written order stating reasons. Notice expiring during the absence is also void
28	b	Under the ESI Act , at 100 per cent of average daily wages for 26 weeks , and to that extent outside the Maternity Benefit Act. The two do not stack
29	b	Articles 14, 15, 19(1)(g) and 21 , together with CEDAW . The 19(1)(g) reasoning is that a woman cannot exercise her right to practise a profession in a hostile workplace
30	b	Four members minimum, half women, a woman senior employee presiding, and one external NGO member as a safeguard against capture
31	b	Fewer than ten employees, or where the complaint is against the employer - because an Internal Committee constituted by that employer could not fairly inquire
32	b	Only at the woman's request , and no monetary settlement may be its basis. Where a settlement is reached, no further inquiry is conducted
33	b	Mere inability to substantiate does not attract action . Without that safeguard, the risk of retaliation would deter complaints altogether
34	c	A debt or customary obligation used to compel labour - not merely low wages or long hours
35	b	Extinguished , and no suit lies in any civil court for its recovery. Property held as security must also be restored free of encumbrances

6.3 Level 3

Q	Ans	Explanation
36	a	A-3 Bonded Labour from Article 23 ; B-1 Maternity Benefit from Article 42 ; C-2 Child Labour from Article 24 ; D-4 POSH from Articles 14, 15, 19(1)(g) and 21
37	d	All three correct . The three figures are 80, 240 and 90 , in three different statutes - and confusing them is the commonest error in this area
38	c	The report must be given within TEN days of completion of the inquiry, not thirty. The sequence is 3 months, 90 days, 10 days, 60 days
39	d	All three correct - and the fourth change was the option of work from home after the benefit period where the nature of work permits
40	a	Article 23 operates at two registers of severity - the Bonded Labour Act for debt bondage, and the Asiad Workers (1982) holding that below-minimum-wage payment is forced labour, for the ordinary case of economic compulsion

7. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F2.8 - THE PROTECTIVE STATUTES

FOUR STATUTES, FOUR CONSTITUTIONAL PARENTS Child Labour = **Art 24** (+ Art 39(e) and (f)) · Maternity Benefit = **Art 42** · POSH = **Art 14, 15, 19(1)(g), 21** · Bonded Labour = **Art 23**

CHILD AND ADOLESCENT LABOUR - THE TWO AGES CHILD BELOW 14 = COMPLETE PROHIBITION in all occupations · **ADOLESCENT 14-18 = prohibited only in HAZARDOUS occupations** · the **2016 amendment REVERSED the old scheme** (which prohibited only in listed occupations and regulated elsewhere) · age **14** matches **Art 21A** and the **RTE Act 2009**

TWO EXCEPTIONS FOR CHILDREN helping **family or family enterprise**, non-hazardous, **after school hours or in vacations** · **artist** in audio-visual entertainment, advertisement, films, TV, sports - **EXCEPT A CIRCUS** - with safety conditions and schooling unaffected

HAZARDOUS SCHEDULE after 2016 = THREE HEADS mines · **flammable substances or explosives** · **hazardous processes under the Factories Act**

ADOLESCENT CONDITIONS 6 hours including rest · **no work 7 p.m. to 8 a.m.** · **no overtime** · one weekly holiday · not in two establishments the same day

PENALTIES employing a child **6 months to 2 years** or fine **Rs 20,000-50,000** · repeat **1 to 3 years** · **PARENTS NOT PUNISHED for a first offence**, then fine up to **Rs 10,000** ·

REHABILITATION FUND Rs 15,000 per child plus fines, paid at **18** · **DISTRICT MAGISTRATE** enforces · offences **cognizable**

MATERNITY BENEFIT applies at **10 or more** persons · eligibility **80 DAYS** of actual work in the preceding 12 months · **DISTINGUISH 80 (maternity) / 240 (continuous service) / 90 (building worker)**

THE LEAVE SEQUENCE - 26, 12, 12, 6, 2, 1 26 weeks first two children (max **8 weeks** before delivery) · **12 weeks** third child onward (max **6** before) · **12 weeks** commissioning or adopting mother (child under **3 months**) · **6 weeks** miscarriage or medical termination · **2 weeks** tubectomy · **1 month** illness arising out of pregnancy

2017 AMENDMENT - FOUR CHANGES 12 → 26 weeks · **12 weeks for commissioning and adopting mothers** · **creche at 50 or more employees with 4 visits a day** · **work from home** after the benefit period

PROTECTIONS medical bonus **Rs 3,500** · **nursing breaks until the child is 15 MONTHS** · **no employment for 6 weeks immediately after delivery or miscarriage** · **no arduous work in the month preceding that 6-week period** · **DISMISSAL DURING MATERNITY ABSENCE IS VOID**, and notice expiring during it is void - only exception is **gross misconduct by written order with reasons** · pre-delivery benefit paid **in advance**, balance within **48 hours** of proof ·

ESI-covered women get 26 weeks at 100% under ESI and are to that extent outside this Act - THE TWO DO NOT STACK

POSH VISHAKA 1997 guidelines on **Art 14, 15, 19(1)(g), 21** and **CEDAW**, operating for **16 years** until the **POSH Act 2013** · the **19(1)(g)** reasoning - a woman cannot exercise the right to practise a profession in a hostile workplace · **workplace defined widely** including transport provided by the employer and a **dwelling place for domestic workers**

COMMITTEES IC at 10 or more employees, constituted by the **employer** · presided by a **WOMAN at senior level** · **not less than 4 members, at least half women, one member from an NGO** (a safeguard against capture) · tenure **3 years** · **LC by the DISTRICT OFFICER where fewer than 10 employees OR the complaint is against the employer**

TIME LIMITS - 3 / 90 / 10 / 60 complaint within **3 MONTHS** (extendable by **3**) · inquiry within **90 DAYS** · report within **10 DAYS** · action within **60 DAYS** · **conciliation only at the woman's request and NO MONETARY SETTLEMENT as its basis** · employer penalty **Rs 50,000**, repeat doubles and may cancel licence · interim relief includes transfer and **3 months' extra leave** · **MERE INABILITY TO SUBSTANTIATE ATTRACTS NO ACTION** · **confidentiality** mandatory · **sexual harassment is also enumerated MISCONDUCT** in the Model Standing Orders

BONDED LABOUR 1976 = ARTICLE 23 IN STATUTORY FORM system **abolished** · every bonded labourer **freed and discharged** · agreements **void** · **bonded debt EXTINGUISHED** · **NO SUIT** lies for its recovery · property restored **free of encumbrances** · **no eviction** from homestead · essential element is a **DEBT or CUSTOMARY OBLIGATION compelling labour**, including obligation from **birth in a caste or community** · **VIGILANCE COMMITTEES at district and sub-divisional level** for rehabilitation, credit and defending recovery suits · penalty **3 years and Rs 2,000** · **cognizable and bailable**
ARTICLE 23 AT TWO LEVELS Bonded Labour Act for debt bondage · **Asiad Workers 1982** for below-minimum-wage as forced labour · *same Article, two registers of severity*

8. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F2.8 - THE PROTECTIVE STATUTES

PARENTS child = **24** · maternity = **42** · POSH = **14/15/19(1)(g)/21** · bonded = **23**

CHILD BELOW 14 TOTAL BAN · **ADOLESCENT 14-18 HAZARDOUS BAN** · exceptions **family enterprise** and **artist, NOT CIRCUS**

HAZARDOUS = 3 HEADS mines · explosives · Factories Act hazardous processes

ADOLESCENT 6 HOURS · **NO 7 p.m.-8 a.m.** · **NO OVERTIME**

PENALTY 6 months-2 years, Rs 20,000-50,000 · **PARENTS SPARED first offence** · **FUND Rs 15,000**

MATERNITY 10 employees · **80 DAYS** · **26 / 12 / 12 / 6 / 2 / 1**

80 maternity · **240 continuous service** · **90 building worker** (do not swap)

2017: 26 WEEKS · **COMMISSIONING MOTHER** · **CRECHE AT 50 + 4 VISITS** · **WORK FROM HOME**

MEDICAL BONUS Rs 3,500 · **NURSING BREAKS TO 15 MONTHS** · **DISMISSAL VOID**

ESI WOMAN GETS 26 WEEKS AT 100% UNDER ESI · **NO STACKING**

POSH: VISHAKA 1997 · **IC AT 10** · **4 MEMBERS** · **HALF WOMEN** · **WOMAN PRESIDES** · **1 NGO MEMBER**

LC WHERE UNDER 10 OR COMPLAINT AGAINST THE EMPLOYER

3 MONTHS · **90 DAYS** · **10 DAYS** · **60 DAYS** · **NO MONETARY CONCILIATION** · **NO ACTION FOR MERE FAILURE TO PROVE**

BONDED 1976 = ART 23 · debt **EXTINGUISHED, no suit** · **VIGILANCE COMMITTEES** district and sub-division · **3 years + Rs 2,000**

ART 23 TWO LEVELS bonded labour · **below minimum wage = forced labour (Asiad Workers 1982)**

ACTION · NEXT IN THE FOUNDATION TRACK

Chapter F2.9 - The Four Labour Codes Consolidated: a single comparison volume giving every threshold, rate and time limit as an **old Act / new Code pair**, plus what was genuinely new (fixed-term employment, the uniform wages definition, negotiating unions, gig and platform workers, the Inspector-cum-Facilitator). It is the revision spine for the whole of Module 2.